



Tyler O'Connell

11:45 AM (1 hour ago)

to me, Monique, Chad, Veronica, Maria 

Mr. Rosario,

None of your cited authorities apply to the current situation where, here, an Anti-SLAPP motion is pending. Your position on this issue—and generally in this litigation—has absolutely zero merit and is obviously designed to waste my time, my clients' resources, and the Court's time. The Court is not going to appreciate your incessant clogging of the docket with meritless "motions," "bench briefs," and "supplemental" filings.

Moreover, your litany of case authorities cited here is completely irrelevant to the status of this litigation and appears to nothing more than an AI-generated recitation of general principles of amendment, which adds nothing to the analysis of this situation here: where an Anti-SLAPP motion is pending. Put simply, you cannot obtain the relief you seek, here, a motion for leave to amend the pleadings while an Anti-SLAPP motion is pending. Full stop. Please actually read the words of my Opposition to your motion for leave to amend. Uploading it to ChatGPT, and receiving spoon-fed AI hallucinations, is not a proper stand-in for legal analysis.

Regards,



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From: Dylan Rosario <soltrinox@gmail.com>

Sent: Thursday, April 23, 2026 7:04 PM

To: Monique Schubert <mschubert@porterscott.com>

Cc: Chad S. Tapp <ctapp@porterscott.com>; Tyler O'Connell <toconnell@porterscott.com>; Veronica Jackson <vjackson@porterscott.com>; Maria Reyes <mreyes@porterscott.com>

Subject: Re: Rosario v Abdelhalim, et al - Opposition - CGC-25-631801

External email



Dylan Rosario <soltrinox@gmail.com>

12:28 PM (26 minutes ago)

to Tyler, Monique, Chad, Veronica, Maria 

Dear Mr. O'Connell,

Your Anti-SLAPP motion and the § 436 Motion to Strike/Demurrer are deficient on their face. The First Amended Complaint remains substantially pleaded, and your opposition notably omits controlling Supreme Court precedent.

Regardless of your efforts to manufacture total immunity for insurance companies and their counsel, independent actions can and do arise from extrinsic fraud, such as misrepresentations made to the court regarding pretrial discovery and possession. That's a typical deny posture. These misrepresentations are well-documented in the record.

The court's reliance on the candor of your firm and its financial backer, CSAA, led to adverse rulings against me based on inaccurate statements regarding the possession of records. This constitutes a violation of the law and is the definition of extrinsic fraud intended to inhibit my ability to present evidence in a fair manner.

I maintain the right to seek equity from the court on this matter. You will need to provide a substantive explanation for these misrepresentations and demonstrate how they were not prejudicial given the specific rulings made against me.

Anti-SLAPP: Fails at prong 1 because an independent action to set aside a judgment for extrinsic fraud is not "arising from" protected activity (Kulchar, Silberg, Park). Fails at prong 2 because Plaintiff tenders prima facie evidence of concealment and process-abuse. Privilege arguments collapse because § 47(b) does not reach extrinsic fraud.

§ 436 MTS / Demurrer: Fails because (a) extrinsic-fraud vacatur is a recognized cause of action (Kulchar, Stevenot, Rappleyea); (b) damage items are not "irrelevant" as a matter of law (PH II); (c) collateral estoppel requires actual litigation of the extrinsic-fraud issue, which by definition did not occur (Lucido); and (d) at worst, leave to amend defeats any cure-able defect (Blank, Goodman).

Regards,

Dylan Rosario